

TENTATIVE RULINGS

Date: May 18, 2026

#	Case Name	Tentative
1	Trombetta vs. Patterson 2024-01406889	1. Demurrer to Amended Complaint 2. Case Management Conference Defendants Bradley A. Patterson, Harry T. O'Hagin, LGI LLP, and Martin P. Cohn, individually and dba Cohn, Stewart & Associates' demur to Plaintiff's Second Amended Complaint. <i>Second cause of action for Unlawful, Unfair, and Fraudulent Business Practices (Business and Professions Code section §17200 et seq.)</i> The Unfair Competition Law (UCL), Business and Professions Code section 17200 et seq., prohibits unfair competition, including unlawful, unfair or fraudulent business acts. (Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co. (1999) 20 Cal.4th 163, 180.) "By proscribing 'any unlawful' business practice, 'section 17200 'borrows' violations of other laws and treats them as unlawful practices' that the unfair competition law makes independently actionable." (Ibid. [citations omitted].) Virtually any law or regulation can serve as predicate for a section 17200 "unlawful" violation. (Paulus v. Bob Lynch Ford, Inc. (2006) 139 Cal.App.4th 659, 681 [citation omitted].) Plaintiff "seeks recovery on his own behalf as to the First Cause of Action for Malicious Prosecution and on behalf of others similarly injured by Defendants Unlawful Business. Practices under Business & Professions Code §17200 in the Second Cause of Action." (SAC ¶ 2.)

Plaintiff alleges Defendants implemented fraudulent tax avoidance plans, intimidated and threatened others not to disclose the information or make it known to the public and to the authorities, and made false and fraudulent representations to Plaintiff. (SAC ¶¶ 143, 145.)

Defendants demur on the grounds Plaintiff lacks standing to bring the claim based on tax fraud since he personally suffered no damages.

In addition to the tax fraud allegations, however, Plaintiff also alleges Defendants used court proceedings with the intent to “threaten Plaintiff and others with legal and monetary harm to discourage and prevent them from bringing the extent of Defendants’ unlawful activities to light or to disclose them.” (SAC ¶ 149.) Plaintiff alleges as a result he and others “have sustained an economic loss for which they are entitled to restitution as well as their attorney fees.” (SAC ¶ 150.)

On reply, Defendants contend Plaintiff cannot assert a malicious prosecution claim as a violation of section 17200 as “the sole means of addressing a claim for malicious prosecution is through a cause of action for that claim.” (Reply at 5:3-5.)

“Knowingly filing or pursuing unmeritorious legal actions that are not factually or legally tenable, for the purpose of earning income, qualifies as an unfair business practice.” (Golden State Seafood, Inc. v. Schloss (2020) 53 Cal.App.5th 21, 40.)

The case on which Defendants rely, Rubin v. Green (1993) 4 Cal.4th 1187, is inapposite. The court in Rubin addressed the litigation privilege under section 47, subdivision (b) and not a claim for malicious prosecution. The court found the plaintiff’s claim in fact “lack[ed] an essential attribute of a malicious prosecution action” and as the only exception to section 47(b) tort suits has been for malicious prosecution actions, the plaintiff could not avoid the application of section 47(b) by bringing his claim under the unfair competition statute. (Id. at pp. 1193-1194.)

Finally, Defendants contend the claim is time-barred.

Plaintiff filed his original complaint on 10/22/18. (ROA 3.)

“[A]bsent special circumstances, the last element accrual rule is fully applicable in UCL cases.” (Ivanoff v. Bank of America, N.A. (2017) 9 Cal.App.5th 719, 732-733 [citation omitted].)

Plaintiff alleges in 2013, Defendants filed an amended cross-complaint in an underlying action to include Plaintiff as a cross-defendant to intimidate Plaintiff and “dissuade any cooperation with taxing authorities that would lead to uncovering additional evidence of their racketeering activities and to prevent and/or continue to delay detection of and prosecution for the pattern of criminal conduct described herein.” (SAC ¶¶ 20, 130.) The cross-complaint was then dismissed with prejudice as to Plaintiff on 10/23/17. (SAC ¶ 21.) Plaintiff contends the dismissal in 2017 is the “last element” from which the statute of limitations runs.

A cause of action for malicious prosecution “does not accrue until such favorable termination has occurred.” (Ray v. First Federal Bank (1998) 61 Cal.App.4th 315, 318 [citation omitted].) Thus, to the extent Plaintiff’s section 17200 claim is also based on allegations of malicious prosecution, that cause of action would not have accrued until the cross-complaint was dismissed as to Plaintiff (as a cross-defendant) in 2017.

Finally, Defendants contend no allegations were made against Defendant Martin P. Cohn, individually and dba Cohn, Stewart & Associates.

Plaintiff alleges Cohn was an attorney and a member of Cohn, Stewart & Associates (CSA). (SAC ¶ 9.) Plaintiff further alleges defendant CSA “was, at all relevant times, a law firm, which included Defendant COHN on whose behalf COHN acted as an agent in connection with the matters herein alleged.” (SAC ¶ 10.) Plaintiff alleges Cohn, CSA, along with others, caused to be filed the cross-complaint, which was later amended to add Plaintiff, to “gain revenge, obtain an improper litigation advantage, create leverage to force settlement, and to intimidate TROMBETTA and other Cross-Defendants.” (SAC ¶¶ 18, 23, 26.)

As such, Plaintiff has alleged relevant facts as to Cohn as well as Cohn, Stewart, & Associates.

		Tentative Ruling: The Court OVERRULES Defendants’ demurrer as to the second cause of action. The Court ORDERS Defendants Bradley A. Patterson, Harry T. O’Hagin, LGI LLP, and Martin P. Cohn, individually and dba Cohn, Stewart & Associates to file an answer within 20 days.
2	Hakopian vs. Hakopian 2025-01454652	1. Motion to Strike Portions Of Complaint 2. Demurrer to Amended Complaint 1. Motion to Strike Defendant moves to strike the 2nd, 3rd, 5th, 10th, 11th, and 12th causes of action from the First Amended Complaint (“FAC”) on the grounds that the FAC was not drawn in conformity with the law. A trial court has discretion to strike out “any irrelevant, false, or improper matter inserted in any pleading” or “all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Civ. Proc. Code § 436, subd. (b).) “It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all. The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.” (Community. Water Coalition v. Santa Cruz Cty. Local Agency Formation Commission (2011) 200 Cal.App.4th 1317, 1329 [cleaned up] [striking amendment adding new facts and a new cause of action even though it was based upon the same legal contention at issue in the original pleading].) Here, Plaintiff’s original Complaint asserted ten causes of action for: (1) quiet title; (2) declaratory relief; (3) reformation of deed; (4) ouster; (5) partition; (6) breach of contract; (7) breach of implied covenant of good faith and fair dealing; (9) assault; and (10) intentional infliction of emotional distress (“IIED”). (ROA No. 2.)